

statute as it does not appear that any such depositions proceeded prior to the filing of the application.

Second, plaintiffs request the court order that the depositions of defendants' experts proceed on dates which were previously offered by defendants. This request is denied as it is unsupported by statutory authority. Plaintiffs' request to permit plaintiffs' expert depositions to proceed after the expert discovery cutoff date is likewise denied. The court notes that scheduling issues such as those raised by the application can and should be resolved through good faith meet and confer and compromise between counsel. Counsel are reminded of their obligations in that regard.

5. S-CV-0051782 American Express NB v. Rode, Leon

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to set aside dismissal and enter judgment on stipulation pursuant to Code of Civil Procedure section 664.6 in the amount of \$30,039.81 in principal damages plus costs of \$655 for a total judgment of \$30,694.81. Defendants have not filed any opposition.

The unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered May 21, 2024 is hereby set aside and judgment is entered for plaintiff as against defendants in the amount of \$30,694.81 (\$30,039.81 in principal damages and costs of \$655).

6. S-CV-0052333 Ivancich, Larry v. Safeway Inc.

Defendant's Motion to Compel Further Response to Special Interrogatory No. 62

Defendant moves to compel further response to special interrogatory no. 62. Plaintiff opposes the motion.

The court notes defendant failed to comply with Code of Civil Procedure 3.1345 (a)(2) by failing to provide a separate statement in support of its motion to compel further response to special interrogatory no. 62.

The court admonishes defendant on its failure to strictly adhere to Code of Civil Procedure 3.1345 (a)(2). However, as defendant reproduced the entirety of special interrogatory no. 62 and plaintiff's response in its moving papers, the court will review the merits.

By filing the subject lawsuit which seeks recovery for personal injuries and general damages, plaintiff put his medical condition at issue in the case. The request for medical treatment sought by special interrogatory no. 62 is limited to the timeframe of March 1,